

26STCV02322 26STCV02322

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Case Number: 26STCV02322 Hearing Date: August 4, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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TODAY'S FRESH START,

Petitioner(s),

vs.

LOS

ANGELES UNIFIED SCHOOL DISTRICT, et al.,

Respondent(s).

Case No.:

26STCV02322

Hearing Date:

August 4, 2026

[TENTATIVE]

ORDER MOTION FOR PRELIMINARY INJUNCTION

Today's Fresh Start ("Petitioner") seeks a preliminary injunction restraining respondents Los Angeles Unified School District ("LAUSD" or the "District"), Board of Education of the District ("Board"), and Alberto Carvalho ("Superintendent"), in his official capacity as superintendent of the District (collectively, "Respondent").

The preliminary injunction is granted.

I.

Background

1.

Factual Background

Petitioner operated two campuses under a charter authorized by Compton Unified School District ("CUSD"), including the Vernon/Crenshaw site^[1] located within LAUSD's geographic boundaries. (Parker Decl. ¶¶ 5–6; Willmott Decl. ¶ 6.) Because the Vernon/Crenshaw site was established prior to January 1, 2020, Petitioner was required under Education Code section 47605(a)(5)(A) to either obtain written permission from LAUSD to continue operating the site under CUSD's charter or submit a renewal petition to LAUSD at the time of renewal. (Parker Decl. ¶ 6; Willmott Decl. ¶¶ 8–9.)

On April 15, 2025, Petitioner first sought Respondent's written approval to continue operating the Vernon/Crenshaw site under its CUSD charter. (Parker Decl. ¶ 6; Willmott Decl. ¶ 9.) On May 28, 2025, apparently after not yet hearing from Respondent, Petitioner followed up seeking a timeline for action. (Parker Decl. ¶ 7.) On June 30, 2025, Respondent transmitted a letter stating that LAUSD understood Petitioner would not be occupying the Vernon/Crenshaw facility during the 2025-2026 school year and therefore deemed Petitioner's request "moot." (Parker Decl. ¶ 9; Willmott Decl. ¶ 11, Ex. F.)

On July 23, 2025, Petitioner—under the impression that LAUSD had not yet responded—requested an intake appointment to submit a charter renewal petition to LAUSD and likewise represented that Petitioner intended to submit its renewal petition to LAUSD on September 19, 2025. (Parker Decl. ¶ 8; Willmott Decl. ¶ 12, Exs. F and G.) Respondent did not schedule the intake

meeting. (Parker Decl. ¶ 9.) On July 25, 2025, Respondent again provided Petitioner the June 30 letter. (Parker Decl. ¶ 9; Willmott Decl. ¶ 13, Ex. H.) On August 5, 2025, Petitioner informed Respondent that it held a lease for the Vernon/Crenshaw facility through June 30, 2030 and reiterated its intent to submit a renewal petition on September 19, 2025. (Parker Decl. ¶ 10; Willmott Decl. ¶ 14.)

Petitioner submitted a renewal petition to CUSD on December 12, 2025, seeking renewal only for its Compton campus and removing the Vernon/Crenshaw site from the CUSD charter. (Parker Decl. ¶ 11; Willmott Decl. ¶ 19.) CUSD approved that renewal on March 10, 2026. (Ibid.)

Petitioner delivered its renewal petition for the Vernon/Crenshaw site to LAUSD on March 5, 2026. (Parker Decl. ¶ 27, Ex. B; Willmott Decl. ¶ 18, Ex. J.) LAUSD accepted the submission and posted its staff report recommending denial on April 27, 2026. (Willmott Decl. ¶ 22, Ex. L.) LAUSD held Petitioner's public hearing on April 21, 2026, as required by statute. (Parker Decl. ¶ 28; Willmott Decl. ¶ 21, Ex. K.) LAUSD acted on the petition at its May 12, 2026 board meeting and voted to deny renewal. (Parker Decl. ¶ 29; Willmott Decl. ¶ 26.)

Petitioner appealed the denial to the Los Angeles County Board of Education on June 10, 2026. (Parker Decl. ¶ 37; Willmott Decl. ¶ 27, Ex. N.) Petitioner then filed this action on June 18, 2026. (Parker Decl. ¶ 39.)

2.

Procedural History

Petitioner filed its verified petition on June 18, 2026. Proofs of service on file show Petitioner served the summons and petition on LAUSD and the Board by personal service on June 25, 2026. There is no proof of service on file for the Superintendent. On July 27, 2026, LAUSD and Board filed their answer.

On June 29, 2026, the Court denied Petitioner's ex parte application for a temporary restraining order ("TRO") and order to show cause ("OSC") re: preliminary injunction but set the instant hearing for preliminary injunction on regular notice for August 4, 2026.[2]

On July 15, 2026, the Court granted Petitioner's ex parte

application restricting public access to the declarations of Dr. Jeanette Parker filed June 24 and July 13, 2026.

II.

Evidentiary Matters

1.

Request for Judicial Notice

Petitioner seeks judicial notice of the following exhibits:

(1) the March 11, 2026 order in Gabriella Charter Schools v. California Department of Education, et al., LASC case no. 25STCP04289 (Pet. RJN Ex. A.); (2) the Senate Committee on Education analysis of Assembly Bill No. 1505 (2019-2020 Reg. Sess.) ("AB 1505"), hearing date July 10, 2019 (Pet. RJN Ex. B.); (3) Senate Rules Committee / Office of Senate Floor Analyses analysis of AB 1505, dated September 2019 (Pet. RJN Ex. C); (4) California Department of Education memorandum to the Members of the State Board of Education, dated October 30, 2019, titled "Charter School Legislation Updates: AB 1505 and AB 1507" (Pet. RJN Ex. D); (5) Los Angeles County Office of Education guidance, titled "District-Denied Charter School Renewals on Appeal", updated March 2025 (Pet. RJN Ex. E); (6) Assembly Bill 126 (2025-2026 Reg. Sess.) ("AB 126"), chaptered July 9, 2026, Chapter 65, Statutes of 2026 (Pet. RJN Ex. F); (7) Assembly Third Reading Analysis of AB 126, introduced January 6, 2025 (Pet. RJN Ex. G); (8) Senate Committee on Budget and Fiscal Review analysis of AB 126, as amended June 26, 2026 (Pet. RJN Ex. H); (9) Senate Rules Committee / Office of Senate Floor Analyses Third Reading analysis of AB 126, as amended June 26, 2026; (Pet. RJN Ex. I); (10) Assembly Concurrence in Senate Amendments analysis of AB 126, as amended June 26, 2026 (Pet. RJN Ex. J).

Request 1 is for a non-appellate decision, not citable as legal authority, and is not a record of a case that is in any way related to this one. Accordingly, is irrelevant. (CRC 8.1115.) Request 1 is denied. The remaining requests are granted. (Evid. Code § 452(c).)

Respondent seeks judicial notice of the following exhibits:

(1) Respondent's Regular Board Meeting Revised Stamped Order of Business for April 21, 2026 (Resp. RJN Ex. A); (2) Respondent's Regular Board Meeting Revised Stamped Order of Business for May 12, 2026 (Resp. RJN Ex. B); (3) Petitioner's renewal petition submitted to Compton Unified School District ("CUSD") on or about December 12, 2025 (Resp. RJN Ex. C); (4) the CUSD Staff

Report, Findings of Fact & Recommendation Concerning Today's Fresh Start Charter Petitioner Renewal, posted February 23, 2026 (Resp. RJN Ex. D); (5) CUSD Board of Education's March 10, 2026 Meeting Minutes (Resp. RJN Ex. E); (6) CUSD Board of Education's Resolution No. 25/26-68; Approval with Conditions the Renewal of the Charter School Petition for Today's Fresh Start Charter School by the Governing Board of CUSD (Resp. RJN Ex. F); (7) Petitioner's January 30, 2026 Special Board Meeting minutes (Resp. RJN Ex. G); (8) Education Code section 47605 (2011) (Resp. RJN Ex. H); (9) Education Code section 47607 (2011) (Resp. RJN Ex. I); (10) Office of Administrative Law ("OAL") Rulemaking File, OAL File No. 2011-0914-01S (Resp. RJN Ex. J); and (11) Judgment denying Petition for Writ of Mandate in Shapiro v. Los Angeles Unified School District, LASC case no. BS121469 (Resp. RJN Ex. K).

The requests are granted. (Evid. Code § 452(b), (c), (d).)

2.

Evidentiary Objections

Respondent objects to portions of the Heaton Declaration, Lloyd Declaration, Fargnoli Declaration, Mencos Declaration, Swaffi Declaration, Fabro Declaration, Lopez Declaration, Phillips Declaration, Gooden Declaration, Fahmy Declaration, Lugo Declaration, Aldridge Declaration, Odom Declaration, and Parker Declaration.

The objections to portions of paragraph 9 of the Lloyd Declaration are sustained.

The objections to portions of paragraphs 14-16, 19, and 22 of the Fargnoli Declaration are sustained.

The objections to portions of paragraphs 7 and 10 of the Mencos Declaration are sustained.

The objections to portions of paragraphs 5 and 6 of the Swaffi Declaration are sustained.

The objections to portions of paragraph 10 of the Fabro Declaration are sustained for improper legal conclusion.

The objection to portions of paragraph 6 of the Phillips

Declaration is sustained for improper legal conclusion, as is the objection to portions of paragraph 7, but only as to, “[i]f TFS loses the ability to continue providing services and support to our community, the harm to individual students and their families will be irreparable,” on page 3, lines 5-6.

The objections to portions of paragraphs 6, 10, and 12 of the Fahmy Declaration are sustained for improper legal conclusion, as is the objection to portions of paragraph 15, but only as to “[t]hese harms are irreversible,” on page 4, line 17.

The objection to portions of paragraph 4 of the Lugo Declaration is sustained for lack of personal knowledge.

The objection to portions of paragraph 11 of the Aldridge Declaration (objection no. 7) is sustained for improper legal conclusion.

The objection to portions of paragraph 19 of the Parker Declaration is sustained as to the portion characterizing the staff report as testimonial evidence regarding a writing, but overruled as to the portion authenticating and attaching the staff report. The objections to portions of paragraphs 20, 22-23 and 26 are sustained on the same grounds. The objections to portions of paragraphs 21, 24, 33-34, 36, and 41 (objection no. 28) are sustained for improper legal conclusion, as is the objection to portions of paragraph 48, but only as to “[t]hese harms are irreversible” on page 8, lines 22-23; the objection to portions of paragraph 52, but only as to “[t]his concrete harm is irreparable” on page 8, line 11; and the objection to portions of paragraph 53, but only as to “[s]uch result would allow LAUSD to violate the law with impunity, and the harm is not only irreparable, it is indisputable” on page 9, lines 14-15.

The objection to portions of paragraph 9 of the Lopez Declaration is sustained for improper legal conclusion.

Respondent’s remaining objections are overruled.

Petitioner objects to portions of the Willmott Declaration.

The objections to portions of paragraphs 7 and 17, as well as Exhibits B, C, and I are sustained as disclosure of offers to compromise and settlement negotiations. Petitioner’s remaining objections are overruled.

While admitted, the Court assigns the evidence the proper weight.

III.

Discussion

In determining whether to issue a preliminary injunction, the trial court considers two factors: (1) the reasonable probability that the plaintiff will prevail on the merits at trial (Code Civ. Proc. [“CCP”] §526(a)(1)), and (2) a balancing of the “irreparable harm” that the plaintiff is likely to sustain if the injunction is denied as compared to the harm that the defendant is likely to suffer if the court grants a preliminary injunction. (CCP §526(a)(2); 14859 Moorpark Homeowner’s Assn. v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1402; Pillsbury, Madison & Sutro v. Schectman (1997) 55 Cal.App.4th 1279, 1283; Davenport v. Blue Cross of California (1997) 52 Cal.App.4th 435, 446; Abrams v. St. John’s Hospital (1994) 25 Cal.App.4th 628, 636.) Thus, a preliminary injunction may not issue without some showing of potential entitlement to such relief. (Doe v. Wilson (1997) 57 Cal.App.4th 296, 304.)

1.

Probability of Success

“The trial court’s determination must be guided by a ‘mix’ of the potential-merit and interim-harm factors; the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction.” (Butt v. State of California (1992) 4 Cal.4th 668, 678.) However, “[a] trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim. (Ibid.)

Petitioner seeks relief under both Code of Civil Procedure (“CCP”) section 1085 (traditional mandamus) and CCP section 1094.5 (administrative mandamus). [3] (Pet., ¶¶ 81-101.) Petitioner’s principal theory is that its charter renewal was already approved “by operation of law” under California Code of Regulations, title 5, section 11966.4 (“section 11966.4”) because LAUSD failed to issue timely written factual findings within 60 days of receiving the renewal petition. (5 Cal. Code Regs. § 11966.4(c).) Petitioner contends that, as a result, LAUSD has a ministerial duty to recognize the renewal and set

aside its May 12, 2026 denial. (Pet., ¶¶ 108-109; Mot. at 13-14.)

Education Code section 47607 governs the renewal of existing charter schools. (Today's Fresh Start Charter School v. Inglewood Unified School Dist. (2018) 20 Cal.App.5th 276, 282-283 ("TFS (2018)").) Subdivision (b) of section 47607 states that "renewals and material revisions of charters are governed by the standards and criteria described in Section 47605," and also require a reasonably comprehensive description of new legal requirements. (Ed. Code, § 47607(b).)

The implementing regulation for charter renewals is section 11966.4. It provides, in relevant part:

If within 60 days of its receipt of a petition for renewal, a district governing board has not made a written factual finding as mandated by Education Code section 47605(b), the absence of written factual findings shall be deemed an approval of the petition for renewal. (5 Cal. Code Regs., § 11966.4(c).)

The parties' disagreement centers on whether section 11966.4(c)'s 60-day deemed-approval rule remains valid after AB 1505's amendment to Education Code section 47605(b). Before AB 1505, section 47605(b) required a hearing within 30 days and a decision within 60 days for new charter petitions. After AB 1505, section 47605(b) requires a hearing within 60 days and a decision within 90 days. (Ed. Code, § 47605(b).)

Section 11966.4 has not been amended to reflect AB 1505's longer timeline for new charter petitions. LAUSD therefore argues that section 11966.4 is now invalid because section 47607(b) incorporates section 47605(b) "by reference," and section 47605(b) is now inconsistent with a 60-day renewal deadline. Petitioner responds that section 47607(b) incorporates only the "standards and criteria" of section 47605, not its timelines, and that AB 1505 did not amend the portions of section 47605 incorporated into the renewal statute.

TFS (2018) squarely addresses the interaction between sections 47605 and 47607. The Court of Appeal explained that although the substantive "standards and criteria" of section 47605 apply to new petitions, renewals, and material revisions, "the procedure applicable to each is different." (TFS (2018), *supra*, 20 Cal.App.5th at

pp. 282-283.) Section 47605 supplies the procedure for new charter petitions; section 47607 supplies the procedure for renewals. (Ibid.)

Under that interpretation, the phrase “standards and criteria” in section 47607(b) refers to the substantive evaluation factors in section 47605, not its procedural timelines. [4]

This reading is dispositive of the parties' dispute. AB 1505's changes to section 47605(b) altered only procedural deadlines for new petitions, not substantive evaluation criteria. Because procedural timelines are not incorporated into section 47607(b), the amendment does not displace section 11966.4's 60-day renewal rule.

The operative facts are not in dispute. Petitioner submitted its renewal petition on March 5, 2026. (Parker Decl., ¶ 27; Willmott Decl., ¶ 18.) Under section 11966.4(c), LAUSD had until May 4, 2026 to issue written factual findings supporting denial. (§ 11966.4(c).) LAUSD did not issue written findings during that period and did not act until May 12, 2026. (Parker Decl., ¶¶ 19–20; Willmott Decl., ¶¶ 21-26.)

On this record, the renewal petition was deemed approved by operation of law as of May 5, 2026.

LAUSD raises the defense that Petitioner failed to exhaust administrative remedies before filing this action. LAUSD notes that Petitioner may appeal the denial of its charter renewal petition to the County Board of Education and, in fact, has already initiated such an appeal. The difficulty with this argument is that the County's administrative appeal process addresses only whether the chartering authority's May 12, 2026 denial was supported by substantial evidence. By contrast, Petitioner's traditional mandamus claim does not seek review of LAUSD's May 12 decision. Rather, Petitioner seeks a determination that the Charter renewal was already deemed approved as of May 5, 2026, under section 11966.4(c), because LAUSD failed to issue timely written factual findings.

Education Code section 47607.5 provides that when a district “does not grant a renewal to a charter school,” the school “may appeal the decision” pursuant to the procedures governing the denial of a new charter petition under section 47605(k). (Ed. Code, § 47607.5(a).) Under those procedures, the County Board reviews whether the district's stated findings are supported by substantial evidence. (Ed. Code, § 47605(k); see also Ed.

Code, § 47607(i) [County Board may reverse “if the county board of education determines that the findings made by the chartering authority ... are not supported by substantial evidence.”].)

Here, LAUSD identifies no administrative avenue permitting the County Board to consider, or remedy, the question of whether renewal occurred automatically by operation of section 11966.4(c) before the May 12 denial. The County’s review authority is limited to evaluating the merits of LAUSD’s May 12 decision; it does not include the power to determine, or to enforce, a renewal that became effective earlier by operation of regulation. Because the administrative process cannot adjudicate Petitioner’s deemed-approval theory, Respondent has not shown that an administrative remedy exists that Petitioner failed to exhaust.

Accordingly, Petitioner has shown a probability of success on at least its traditional mandamus claim.

2.

Balance of Harms

The court must balance the irreparable harm that Petitioner is likely to sustain if the injunction is denied as compared to the harm that Respondent is likely to suffer if the court grants a preliminary injunction. (CCP §526(a)(2); 14859 Moorpark Homeowner’s Assn. v. VRT Corp., *supra*, 63 Cal.App.4th at 1402; Pillsbury, Madison & Sutro v. Schectman, *supra*, 55 Cal.App.4th at 1283.)

Petitioner has shown that without relief, it will not be able to operate for the 2026-2027 school year. (Parker Decl., ¶¶ 40.) Petitioner also provides declarations from parents, faculty, and staff showing these individuals will be harmed, including the students who would need to enroll in new schools (e.g. Phillips Decl., ¶¶ 4-6), students who would lose access to nutritional programs (Fahmy Decl., ¶ 7), parents who would have difficulty finding quality schools in which to enroll their children (e.g. Fagnoli Decl., ¶ 17; Lopez Decl., ¶ 7), and teachers and staff losing jobs (Fagnoli Decl., ¶ 24).

Respondent’s opposition raises no specific harm it will suffer to balance against Petitioner’s identified harm, only asserting without evidence that granting the injunction would be “significantly harmful

and burdensome.” (Opp. at 17-19, emphasis in original.) Respondent vaguely alludes to costs it might incur in overseeing Petitioner but provides no evidence and does not show how such expenses outweigh the harm to the students, parents, and staff should an injunction not issue.

Accordingly, the balance of harms weighs in favor of Petitioner.

3.

Other Issues

The purpose of a preliminary injunction is to preserve the status quo pending final resolution upon a trial. (See *Scaringe v. J.C.C. Enterprises, Inc.* (1988) 205 Cal.App.3d 1536; *Grothe v. Cortlandt Corp.* (1992) 11 Cal.App.4th 1313, 1316; *Major v. Miraverde Homeowners Assn.* (1992) 7 Cal.App.4th 618, 623.) The status quo has been defined to mean the last actual peaceable, uncontested status which preceded the pending controversy. (*Voorhies v. Greene* (1983) 139 Cal.App.3d 989, 995, quoting *United Railroads v. Superior Court* (1916) 172 Cal. 80, 87; 14859 *Moorpark Homeowner’s Assn. v. VRT Corp.* (1998) 63 Cal.App.4th 1396, 1402.)

LAUSD argues the motion does not preserve the status quo because Petitioner’s charter expired on June 30, 2026 and Petitioner now seeks to operate under a new authorizer. In Respondent’s view, the “status quo” is Petitioner’s loss of authorization. This frames the status quo as the legal posture existing at the moment the lawsuit was filed. But this is incorrect. For example, a foreclosure sale scheduled before suit is filed does not redefine the status quo as “sale imminent.” (See, e.g., *Baypoint Mortgage Corp. v. Crest Premium Real Estate etc. Trust* (1985) 168 Cal.App.3d 818, 825 [given drastic implications of foreclosure, courts frequently find granting preliminary injunctions to forestall the remedy while court considers a case testing whether it is justified under the facts and law].) Similarly, a charter expiration date does not redefine the pre-controversy status quo as “school closed.” LAUSD cites no authority to support that the Court must adopt such a view.

Here, the last uncontested status was Petitioner operating as a public charter school serving enrolled students. The requested relief seeks to maintain that condition during litigation. Preserving that status does not constitute an impermissible alteration of rights that were already disputed.

Respondent also contends that CUSD is a necessary party and that any injunction must be framed as an extension of Petitioner's CUSD charter. This argument rests on the same misunderstanding of the status quo. Here, Petitioner seeks to prevent only LAUSD from enforcing its May 12 denial while this action proceeds. No relief is requested against CUSD, and LAUSD cites no authority requiring joinder of the former authorizer to preserve the pre-controversy operation of the school.

The District further asserts that the doctrine of laches bars relief because Petitioner waited too long to pursue renewal and appeal. The record does contain indicia that Petitioner contributed to the compressed timeline now presented to the Court. Petitioner stated as early as July 2025 that it intended to submit a renewal petition to LAUSD in September 2025 but did not do so until March 2026. The minutes of Petitioner's board reflect authorization to submit a renewal petition on January 30, 2026 (Resp. RJN Ex. G), yet the petition was not submitted until several weeks later. Standing alone, that latter interval is not extreme, but it does reflect that Petitioner was not moving with any particular urgency despite knowing that its existing charter would expire at the end of June 2026 and that LAUSD had questioned Petitioner's authority to operate the Vernon/Crenshaw site for years.

The existing record also shows that LAUSD contributed to the procedural misalignment. LAUSD declined to schedule Petitioner's initial intake meeting, and its June 30, 2025 letter declared Petitioner's request "moot" based on an erroneous belief about site availability, rather than issuing an approval or denial. These circumstances reasonably created confusion about the appropriate path forward. The renewal petition, once filed, triggered LAUSD's obligation under section 11966.4(c), and LAUSD does not dispute that it acted on the petition outside the regulatory 60-day period.

Ultimately, the laches inquiry at the preliminary injunction stage is not whether Petitioner acted with perfect diligence over the preceding year, but whether any delay by Petitioner so prejudiced LAUSD that interim relief should be barred. On this record, although Petitioner's timing plainly contributed to the present urgency, LAUSD has not shown that Petitioner's delay was so unreasonable or that LAUSD suffered prejudice sufficient to warrant denial of provisional relief, particularly where LAUSD's actions also contributed to the procedural posture now before the Court. Moreover, the fact of Petitioner's delay does not alter LAUSD's statutory obligation to act within 60 days once

the renewal petition was submitted.

Because the purpose of the preliminary injunction is to preserve the last peaceable, uncontested status pending adjudication, and because laches has not been established on this record, the Court finds that Petitioner's request for provisional relief is not barred by laches at this stage.

4.

Bond

In setting the bond, the court must assume that the preliminary injunction was wrongly issued. (*Abba Rubber Co. v. Seaquist* (1991) 235 Cal.App.3d 1, 15.) The attorney fees necessary to successfully procure a final decision dissolving the injunction also are damages that should be included in setting the bond. (*Id.* at 15-16.) While *Abba* reasoned that the plaintiff's likelihood of prevailing is irrelevant to setting the bond, a more recent case disagreed, stating that the greater the likelihood of the plaintiff prevailing, the less likely the preliminary injunction will have been wrongly issued, and that is a relevant factor for setting the bond. (*Oiye v. Fox* (2012) 211 Cal.App.4th 1036, 1062.)

The parties have not addressed the issue of bond. The Court will discuss the matter with counsel at hearing.

IV.

Conclusion

Petitioner has shown a probability of success on its claim for traditional mandamus, and the balance of harms favors Petitioner. The preliminary injunction is therefore GRANTED.

Pending final resolution of this matter, Respondent, and all persons acting in concert with it, are restrained from giving legal, administrative, or practical effect to Respondent's May 12, 2026 denial of Petitioner's renewal petition in any manner that prevents, impairs, delays, or interferes with Petitioner's ability to prepare for, open, operate, enroll scholars, employ and retain staff, prepare classrooms, provide student services, report attendance, or receive public funding for its public charter school site at 4476 Crenshaw Boulevard, Los Angeles, California for the 2026-2027 school year.

Date: August 4, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

The parties apparently do not agree on the same nomenclature for the contested school site and refer to it as either the Vernon site or the Crenshaw site. The Court will refer to it herein as the "Vernon/Crenshaw" site.

[2]

On July 28, 2026, the Court ordered the instant motion deemed timely filed in

accordance with the parties' joint stipulation.

[3]

The Petition also contains a third cause of action for injunctive relief, which is properly a remedy and is derivative of the mandamus claims.

[4]

Amendments under AB 126, effective July 1, 2026 (that is, after the administrative proceedings at issue), further provide: "Notwithstanding any other law, and beginning on July 1, 2026, standards and criteria include timelines, deadlines, and other procedures referenced in subdivision (b) of Section 47605 or subdivision (b) of Section 47605.6, as applicable." (Ed. Code § 47607(b).)